

***[Drafting Note: This Agreement should be used in circumstances where the Service Provider is a juristic person.]***

## **ONCE-OFF SERVICES AGREEMENT**

between

**[COMPANY NAME]**

(Registration number: reg.no)

and

**[INSERT SP NAME] PROPRIETARY LIMITED**

(Registration number: [insert Reg Number])

(**"Service Provider"**)

## 1. Interpretation

1. In this Agreement, clause headings are for convenience and shall not be used in its interpretation and, unless the context clearly indicates a contrary intention, -
  - 1.1. an expression which denotes
    - 1.1.1. any gender includes the other genders;
    - 1.1.2. a natural person includes an artificial or juristic person and vice versa;
    - 1.1.3. the singular includes the plural and vice versa;
  - 1.2. the following expressions shall bear the meanings assigned to them below and cognate expressions shall bear corresponding meanings -
    - 1.2.1. **"Affiliates"** means in relation to any person, any other person which, directly or indirectly, (i) is Controlled by the first-mentioned person, (ii) Controls the first-mentioned person, or (iii) is under common Control with the first-mentioned person. **"Control"**, as used in the preceding sentence, means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of such person, whether through the ownership of voting securities, by contract or otherwise;
    - 1.2.2. **"Agreement"** means this document and the annexures and schedules hereto, as amended or issued from time to time by the Parties in writing;
    - 1.2.3. **"Applicable Laws"** in relation to a Party, shall include all and any -
      - 1.2.3.1. Statutes, subordinate legislation and common law; and
      - 1.2.3.2. regulations; and
      - 1.2.3.3. ordinances and by-laws; and
      - 1.2.3.4. directives, codes of practice, circulars, guidance notices, judgments and decisions of any competent authority, or any governmental, intergovernmental or supranational body, agency, department or regulatory, self-regulatory or other authority or organisation;
    - 1.2.4. **"Approvals"** means all consents, licences, approvals, permits and authorisations required by the relevant local authorities in the Republic of South Africa;

- 1.2.5. **“Authority”** means any national, municipal, provincial, other local or administrative government, authority or department, or any agency, tribunal, commission, regulator or other similar body having jurisdiction over the activities and operations of any of the Parties in the Republic of South Africa;
- 1.2.6. **“Best Industry Practice”** means the exercise of that degree of skill, diligence, prudence and foresight which would reasonably and ordinarily be expected from time to time from a skilled and experienced supplier or professional seeking in good faith to comply with its contractual obligations, complying with all Applicable Laws and engaged in the same type of undertaking and under the same or similar circumstances and conditions as those envisaged by this Agreement;
- 1.2.7. **“Business Day”** means any day other than a Saturday, Sunday or official public holiday in the Republic of South Africa, recognised as such under the Public Holiday Act, No 36 of 1994;
- 1.2.8. **“Business Hours”** shall be construed as being the hours between 08:00 and 17:00 on any Business Day. Any reference to time shall be based upon South African standard time;
- 1.2.9. **“Commencement Date”** means **[Drafting note: Business to advise when the services on which date must the services commence]**, notwithstanding the signature date;
- 1.2.10. **“Confidential Information”** means any technical, commercial, marketing or business information or any documentation related to the foregoing, know-how, trade secrets, marketing strategies, processes, machinery, designs, technical specifications, development plans, concepts and ideas, financial information, ‘personal information’ or any ‘record’, customer information or records, business plans, customer and vendor lists, products, the results of any research, analysis, test results, descriptions, drawings, computer software, programming, hardware configurations, systems, materials and/or data of any kind or nature and in whatsoever form (whether in written, oral, magnetic, machine-readable or other format), which is proprietary to or a trade secret of either Party or any of its Affiliates which is either marked as confidential or by its nature should reasonably be understood to be confidential;
- 1.2.11. **“Fees”** means fees payable by [COMPANY NAME] to Service Provider for properly rendering the Services, as set out in the relevant Schedule;

- 1.2.12. **"IPRs" or "IP"** means all existing and future rights in and to all copyright, trademarks, patents, service marks, rights in databases, ideas, inventions, discoveries, trade secrets, know-how, designs, topographies, marks, trade and business names, internet domain names and email address names, logos and devices and all other intellectual property rights, proprietary rights or other rights of a similar nature or having a similar effect, whether registered or unregistered and in whatever form embodied, rights in the same or similar effect and in any jurisdiction;
- 1.2.13. **"Materials"** means all products, goods, software, software documentation, documentation, materials, tools, data, databases, modules, components, methodologies, processes, policies, procedures, techniques, models, configurations, protocols, routines, interfaces (including API interfaces), reports, plans, notes, files, diagrams, manuals, templates, schematics, correspondence, designs, algorithms, specifications, records, equipment, Hardware, servers, computers, platforms, computer code, derivative works, works of authorship and intellectual property; irrespective of the form and format of the foregoing and whether tangible or intangible;
- 1.2.14. **"[COMPANY NAME] Data"** means the Materials, data or information, including Personal Information, relating to [COMPANY NAME], [COMPANY NAME]'s Affiliates (if any), [COMPANY NAME] Personnel, or the customers, operations and business or activities of [COMPANY NAME];
- 1.2.15. **"Parties"** means [COMPANY NAME] and Service Provider collectively, and **"Party"** shall mean one of them, as the context may require;
- 1.2.16. **"Personnel"** means, in relation to a Party, any employee, agent, consultant, sub-contractor or other representative of that Party;
- 1.2.17. **"Personal Information"** means information relating to any person, including but not limited to: (i) information relating to the race, gender, sex, marital status, national, ethnic or social origin, colour, age, disability, language and birth of the person; (ii) information relating to the education or the medical, financial, criminal or employment history of the person; (iii) information relating to the financial affairs of the person; (iv) card details and transactional data; (v) any identifying number, symbol, e-mail address, physical address, telephone number or other particular assignment to the person; (vi) correspondence sent by the person that is implicitly or explicitly of a private or confidential nature or further correspondence that would reveal the contents of the original correspondence; (vii) the views or opinions of another individual about the person; (viii) the name of the person if it appears with other personal information relating to the person or if the disclosure of the name itself would reveal information about the

person; and (ix) any other information which may be treated or defined as "personal information" in terms of any Applicable Laws;

- 1.2.18. **"Persons"** means any individual, firm, company, corporation, state or agency of a state, or any joint venture, partnership, association or incorporated or unincorporated body;
- 1.2.19. **"Schedule(s)"** means the schedule that is substantially in the form of Schedule 1 to this Agreement which fully sets out the Services to be rendered by the Service Provider, and which schedules may be issued by the [COMPANY NAME] from time to time to procure the Services from the Service Provider in terms of this Agreement;
- 1.2.20. **"Services"** means the services to be provided by Service Provider to [COMPANY NAME] in terms of the written Schedule to this Agreement;
- 1.2.21. **"Service Levels"** means the services levels, which are the time parameters as well as the qualitative and quantitative standards, according to which the Services are to be provided and the performance thereof measured, which service levels shall be more fully set out in the Schedule, if any;
- 1.2.22. **"Signature Date"** means, when this Agreement has been signed by all Parties (whether or not in counterpart), the latest of the dates on which this Agreement (or any counterpart) was signed by either Party;
- 1.3. unless otherwise provided, defined terms appearing in this Agreement in title case shall be given their meaning as defined, while the same terms appearing in lower case shall be interpreted in accordance with their plain English meaning;
- 1.4. any reference in this Agreement to **"the/this Agreement"** shall be construed as a reference to this Agreement and the applicable Schedule/s, as amended, varied, novated or supplemented in writing from time to time;
- 1.5. any reference to any statute, regulation or other legislation shall be a reference to that statute, regulation or other legislation as at the Signature Date and as amended or substituted from time to time;
- 1.6. where any term is defined within a particular clause other than clause 1.2, or in a schedule to this Agreement, that term shall bear the meaning ascribed to it in that clause or schedule, as the case may be, wherever it is used in this Agreement;

- 1.7. if any provision in a definition is a substantive provision conferring a right or imposing an obligation on any party then, notwithstanding that it is only a definition, effect shall be given to it as if it were a substantive provision in the body of this Agreement;
- 1.8. if there is any conflict between the provisions of this Agreement and a Schedule then, the provisions of the relevant Schedules shall prevail only in relation to the commercial and operational terms recorded in such Schedule and only to the extent of such conflict, for all conflicts other than those in relation to the commercial and operational terms the provisions of the Agreement shall prevail;
- 1.9. where any number of days is prescribed, or must be calculated, from a particular day in terms of this Agreement, such number shall be calculated as excluding such particular day and commencing on the next day;
- 1.10. where any day for the performance of any obligation and/or the payment of any amount in terms of this Agreement falls on a day other than a Business Day, such obligation shall be performed and/or such amount shall be paid on the immediately preceding day which is a Business Day;
- 1.11. references to days (other than references to Business Days), months and/or years shall be construed as references to calendar days, months and/or years;
- 1.12. the use of the word "including" followed by a specific example/s shall not be construed as limiting the meaning of the general wording preceding it and the *eiusdem generis* rule shall not be applied in the interpretation of such general wording or such specific example(s);
- 1.13. any term which refers to a South African legal concept or process (for example, without limiting the foregoing, winding-up, business rescue or curatorship) shall be deemed to include a reference to the equivalent or analogous concept or process in any other jurisdiction in which this Agreement may apply or to the laws of which a Party may be or become subject;
- 1.14. the terms of this Agreement have been negotiated. Accordingly, the *contra proferentem* rule (being the rule of interpretation that a contract is construed against the Party responsible for its drafting) shall not be applied in the interpretation of this Agreement.

## 2. Recordal

- 2.1. It is recorded that -
  - 2.1.1. the Service Provider is a company which undertakes *inter alia* **Drafting note: Insert accordingly**];

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- 2.1.2. [COMPANY NAME] seeks to retain the services of Service Provider to provide [COMPANY NAME] with the Services; and
- 2.1.3. the Service Provider is willing to provide the Services to [COMPANY NAME].
- 2.2. Accordingly, Service Provider and [COMPANY NAME] enter into this Agreement on and with effect from the Commencement Date, on the terms and subject to the conditions recorded herein.

### 3. Duration

- 3.1. Notwithstanding Signature Date of this Agreement, this Agreement shall commence on the Commencement Date and shall automatically terminate on [Drafting note: Insert relevant end date] unless terminated earlier in accordance with the further provisions of this Agreement. For the avoidance of doubt, it is recorded that upon termination of all Schedules, this Agreement will *ipso facto* terminate.
- 3.2. Each Schedule will commence on the date provided for therein and will continue on the terms and conditions set out therein.
- 3.3. Upon termination of the Agreement, the Parties shall be entitled (but not obliged) to renew the Agreement.
- 3.4. In the event that [COMPANY NAME] elects to renew the Agreement, it shall notify the Service Provider of its intention to do so, in writing, no later than 3 (three) months prior to the expiry of the then current term. Renewal of the Agreement shall, save as agreed otherwise by the Parties, be on the same terms and conditions as contained in this Agreement.
- 3.5. Notwithstanding clause 3.1 above, either Party shall be entitled to terminate this Agreement for convenience, without cause or liability, by giving the other Party 30 (thirty) days' written notice.

### 4. Relationship between the Parties

- 4.1. The Service Provider enters into this Agreement as, and shall at all times be, an independent contractor and agrees that it is appointed on a non-exclusive basis to provide the Services in accordance with the requirements set out herein.
- 4.2. This Agreement shall not constitute the Service Provider as an employee, agent or partner of [COMPANY NAME]. The Personnel of the Service Provider shall, notwithstanding the nature

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of the Services or the manner of their provision, not be construed as the Personnel of [COMPANY NAME].

- 4.3. The Service Provider shall not at any time hold itself out to any third party as an employee, agent or partner of [COMPANY NAME] or as being in any way authorised by [COMPANY NAME] to bind it in any manner to any contracts.
- 4.4. The Parties agree that this Agreement shall not be an exclusive agreement and that [COMPANY NAME] may utilise the services of other service providers to provide the Services or such other services required by it.
- 4.5. The Service Provider hereby indemnifies [COMPANY NAME] and holds [COMPANY NAME] harmless against any liability arising out of or in connection with any breach of this clause 4.

## 5. Services

- 5.1. The Service Provider shall provide various services to [COMPANY NAME] in accordance with the Schedule(s) attached to this Agreement and as agreed to between the Parties from time to time. Each Schedule, which shall be incorporated into the Agreement by reference and made part hereof, shall contain additional terms and conditions that are specific to the Services that are the subject of such Schedule. In the event of a conflict between the provisions of any Schedule and this Agreement, the provisions of this Agreement shall prevail.
- 5.2. In addition to any further obligations which it may have in terms of this Agreement and the Schedule, the Service Provider hereby agrees and shall be obliged to ensure that with effect from the Commencement Date and at all times thereafter:
  - 5.2.1. it provides those services upon which the proper performance of the Services are dependent and that time is of the essence in providing such services;
  - 5.2.2. the Services performed by the Service Provider and its employees are performed in a workmanlike manner and in accordance with international Best Industry Practice;
  - 5.2.3. without derogating from the generality of clauses 5.2.1 and 5.2.2 above, it complies with its obligations as set out in the relevant Schedule;
  - 5.2.4. it procures sufficient resources (including human resources, equipment and facilities) and manages, co-ordinates and maintains such resources to enable it to fulfil all its obligations under this Agreement;



- 5.2.5. it shall not outsource the Services to or have the Services performed by a third party service provider without [COMPANY NAME]'s prior written approval;
- 5.2.6. all its relevant employees are suitably qualified and have all necessary skill and expertise to properly provide the Services;
- 5.2.7. it provides such reasonable assistance as may be requested by [COMPANY NAME] with regard to the Services;
- 5.2.8. it has procured all Approvals necessary to perform its obligations under this Agreement and shall ensure that such Approvals remain valid for the duration of this Agreement;
- 5.2.9. the Services performed by it are performed with a high degree safety, confidentiality, professional skill, care and competence in accordance with the Services' Schedule; and
- 5.2.10. when at any premises belonging to [COMPANY NAME] or any of its Affiliates, its Personnel shall adhere to all policies as may be applicable at such premises.

## 6. Obligations of [COMPANY NAME]

- 6.1. In addition to any further obligations which it may have in terms of this Agreement, [COMPANY NAME] agrees to:
  - 6.1.1. provide such reasonable assistance as may be requested by the Service Provider with regard to the provision of the Services;
  - 6.1.2. to furnish the Service Provider, as soon as reasonably possible, with such information and documents as the Service Provider may reasonably request for the proper performance of its obligations in terms of this Agreement;
  - 6.1.3. to ensure compliance with Applicable Laws in respect of the Schedule(s);
  - 6.1.4. subject to the Service Provider performing its obligations in accordance with this Agreement and the Services Schedule(s), pay the Service Provider the Fees.

## 7. Services management

- 7.1. Each Party shall appoint an individual as its "**Authorised Representative**" who shall be authorised to act as the primary point of contact on behalf of that Party with respect to issues related to or arising out of this Agreement and who, subject to any exceptions detailed in this Agreement, will be authorised to issue all consents or approvals and make all requests on

DG 09

behalf of that Party. Each Party may from time to time replace the individual appointed as its Authorised Representative, upon written notice to the other Party.

- 7.2. The Authorised Representative of each Party will also:
- 7.2.1. subject to any exceptions detailed in this Agreement, be authorised to issue all consents or approvals and make all requests on behalf of that Party; and
  - 7.2.2. be responsible for implementing all decisions of the Parties to the extent that a Party is required to take steps to implement any decisions.

## 8. Change requests

- 8.1. [COMPANY NAME] or the Service Provider (the “**Requesting Party**”) may from time to time submit a proposal to the Authorised Representative of the other Party requesting changes or additions to the Services set out in the respective Schedule(s) (“**Change Request**”).
- 8.2. On receiving a Change Request, the Authorised Representatives of the Parties shall consult regarding issues arising from such Change Request.
- 8.3. Within 10 (ten) Business Days after receiving a Change Request, and provided [COMPANY NAME]’s Authorised Representative notified the Service Provider’s Authorised Representative to investigate the Change Request further where Service Provider submitted the Change Request, the Service Provider’s Authorised Representative shall provide [COMPANY NAME]’s Authorised Representative with a written report describing:
  - 8.3.1. the feasibility of the changes contemplated by the Change Request;
  - 8.3.2. the proposed method of implementing the Change request;
  - 8.3.3. the effect that implementation of the Change Request will have on the Parties respective obligations in this Agreement;
  - 8.3.4. proposed revised annexures to this Agreement to the extent that these will be impacted by the Change Request;
  - 8.3.5. the benefits to be derived by the Parties as a result of the implementation of the Change Request;
  - 8.3.6. any other options that may reasonably be considered to address the matter giving rise to the Change Request; and

- 8.3.7. any additional costs, expenses or contributions which may be necessary as a result of the implementation of the Change Request, provided such charges and expenses must be reasonable.
- 8.4. [COMPANY NAME]'s Authorised Representative may request the Service Provider's Authorised Representative to conduct further or alternative investigations and thereafter revise his written report for further consideration by [COMPANY NAME] within 10 (ten) Business Days following such request.
- 8.5. A Change Request shall not be implemented unless [COMPANY NAME] gives its approval in writing to:
- 8.5.1. the proposed changes to the Services; and
- 8.5.2. any additional costs, expenses and contributions for which it may be liable.
- 8.6. Following [COMPANY NAME]'s approval in terms of clause 8.5 above, the Parties agree to make such written amendments to the relevant Schedules to this Agreement as may be necessary.
- 8.7. If a Change Request is made and one of the Parties reasonably believes that the procedure set forth in this clause 8 should be expedited, the Parties will use their reasonable endeavours to procure that such procedure is expedited to achieve resolution as soon as possible.

## **9. Fees**

- 9.1. The Fees that [COMPANY NAME] shall pay to the Service Provider, in consideration for the rendering of the Services, shall be set out in each Schedule. VAT and other tax of a similar fiscal nature which the Service Provider is from time to time obliged by the respective legislation to charge on the supply of Services shall be so charged by the Service Provider and payable by [COMPANY NAME], subject to the receipt of a valid VAT invoice in respect of the Services supplied.
- 9.2. All Fees shall be exclusive of VAT, which shall be added to invoices at the rate applicable at the date of issuing the invoice and shall be payable by [COMPANY NAME].
- 9.3. Where, [COMPANY NAME] is obliged to withhold tax from payments due to the Service Provider pursuant to this Agreement, [COMPANY NAME] shall withhold such tax from the payment in accordance with the applicable law and provide the Service Provider with the appropriate documentation as proof of remittance to the revenue authority.

- 9.4. Neither Party excludes or restricts in any way its liability for any taxes, penalties, interest, or other monetary amounts, resulting from its own failure (wilfully or otherwise) to comply with its tax obligations as specified in the Applicable Law.
- 9.5. [COMPANY NAME] shall make payment to the Service Provider within 30 (thirty) days of receipt of the relevant invoice from the Service Provider which payment shall be payable in South African Rands.
- 9.6. Unless stated otherwise in the relevant Schedule, in addition to the Fees, [COMPANY NAME] shall reimburse the Service Provider in full for all reasonable and necessary travel and accommodation expenses actually incurred by the Service Provider in providing the Services and which have been approved by [COMPANY NAME] in writing in advance, within 30 (thirty) days of receipt of a valid invoice reflecting such expenses incurred. Where the Service Provider has incurred any such expenses without the prior written approval of [COMPANY NAME] as aforestated, [COMPANY NAME] shall be under no obligation to reimburse the Service Provider for such expenses incurred or any part thereof.

## **10. Intellectual Property**

- 10.1. Neither Party shall have any claim to the copyright, patent, trademarks, designs or any other intellectual property rights of the other merely as a result of this Agreement.
- 10.2. Nothing in this Agreement shall entitle either Party to use the other's name, logo, trademarks, designs, copyrights or any other intellectual property rights in any manner whatsoever without the other Party's prior written consent.
- 10.3. Ownership of all Intellectual Property Rights in and pertaining to the products of the Services (including any reports generated pursuant to this Agreement and any of the Services Schedule) shall vest in [COMPANY NAME] on the date upon which the same are created. The Parties shall sign all necessary documents to effect assignment of ownership to [COMPANY NAME] where this becomes necessary.
- 10.4. The Parties indemnify each other against any claim by any third party resulting from an infringement of such third party's Intellectual Property Rights, and shall indemnify the other Party against any damages (together with all costs and expenses) which may be awarded or agreed to be paid to such third party in respect of any such claim.

## **11. Data Protection**

- 11.1. The Service Provider and its agents or representatives shall ensure that Service Provider Personnel shall not:

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- 11.1.1. process the [COMPANY NAME] Data in any manner or for any purpose other than as set out in this Agreement;
- 11.1.2. source, verify, analyse or monitor any data without receipt of written instructions from [COMPANY NAME] and where required to do so by the Applicable Laws to furnish [COMPANY NAME] with prior written notice of at least 10 (ten) Business Days of its obligation in terms of the Applicable Laws;
- 11.1.3. access data without the necessary authorisation to do so by the Authorised Representative or in an unsafe manner;
- 11.1.4. compromise or damage [COMPANY NAME]'s data during sourcing, verification, storage, handling, use, processing or transport;
- 11.1.5. cause [COMPANY NAME] to contravene any Applicable Laws relating to privacy or protection of Personal Information;
- 11.1.6. cause any third party to process on its behalf Data received from [COMPANY NAME] without [COMPANY NAME]'s prior written consent to do so. Such third party data processor relationship will be subject to the obligations set out in this Agreement and the third party data processor has to give sufficient guarantees regarding the security and confidentiality of the data; or
- 11.1.7. transfer [COMPANY NAME] Data across the borders of the Republic of South Africa or to any other third party data processor, agent or partner without the prior written consent of [COMPANY NAME]. Any transfer of data will be by way of encrypted connection to Authorised Representatives.
- 11.2. Any breach by the Service Provider of its obligations set out in this clause 11, shall be deemed to be a material breach of this Agreement and shall entitle, but not oblige, [COMPANY NAME] to terminate this Agreement and all Schedules related thereto with immediate effect on written notice to the Service Provider.
- 11.3. The Service Provider shall supply on request from [COMPANY NAME] all reasonable data and Materials required by [COMPANY NAME] to assess and confirm the Service Provider's compliance with its obligations in this clause 11. This information shall be provided at no additional cost promptly to [COMPANY NAME] and in any event within 5 (five) Business Days of request.
- 11.4. The Service Provider shall comply with all directions and instructions which may be given by [COMPANY NAME] regarding the processing of [COMPANY NAME] Data.

- 11.5. The Service Provider hereby indemnifies and holds harmless [COMPANY NAME] from and against all losses which [COMPANY NAME] may incur or suffer pursuant to any and all claims arising directly or indirectly as a result of, or related to, a breach by the Service Provider of its obligations under this Agreement.
- 11.6. The Service Provider shall take all precautions necessary to preserve the integrity of the [COMPANY NAME] Data and to prevent any unauthorised access, corruption or loss of [COMPANY NAME] Data in its possession or under its control or that of the Service Provider Personnel.
- 11.7. The Service Provider shall furnish [COMPANY NAME], when requested to do so, with audits of its systems certifying its compliance with the terms set out in this Agreement.
- 11.8. The Service Provider shall, on a monthly basis or, where requested by [COMPANY NAME], on a more frequent basis, provide [COMPANY NAME] with copies of all [COMPANY NAME] Data, or any other [COMPANY NAME] materials that is in the possession or control of the Service Provider and in a form and format reasonably requested by [COMPANY NAME].

## 12. BBBEE LEGISLATION

- 12.1. The Parties acknowledge that [COMPANY NAME] has been established to advance economic transformation and enhance the participation of previously disadvantaged persons in the South African economy. Accordingly, the Service Provider shall assist [COMPANY NAME] to comply with the provisions contained in the Codes of Good Practice on Broad Based Black Economic Empowerment and/or any code applicable sector charter issued in terms of section 9(1) of the Broad Based Black Economic Empowerment Act, 2003 ("BEE") (collectively "**BBBEE Legislation**").
- 12.2. The Service Provider warrants, represents and undertakes that as at the Commencement Date it has a level **[Drafting note: Insert relevant BBBEE Level/rating]** B-BBEE Rating ("**BEE Rating**").
- 12.3. Without limiting the Service Provider's obligations in terms of this clause 12, the Service Provider shall:
- 12.3.1. subject to clause 12.3.4, for the term of this Agreement retain and/or improve its BEE Rating (as the case may be);
- 12.3.2. ensure that [COMPANY NAME] is at all times in possession of a current and valid BEE Rating;

- 12.3.3. advise [COMPANY NAME] if its BEE Rating changes materially from the BEE Rating as at the Commencement Date within a period of 2 (two) weeks from the date on which the event giving rise to the material change in the BEE Rating occurs;
- 12.3.4. in the event of an adverse change to its BEE Rating due to changes in any Applicable Law, the Service Provider shall, immediately notify [COMPANY NAME] of the extent of the adverse change to which such Applicable Law shall have on its BEE Rating and within 1(one) month provide [COMPANY NAME] with an improvement plan that complies to [COMPANY NAME]'s procurement policy, extracts of which may, on request by the Service Provider, be provided to Service Provider from time to time as applicable, in order for Service Provider to improve or restore such BEE Rating in compliance with such policy;
- 12.3.5. in the event of an adverse change to its BEE Rating, other than an adverse change due to changes in Applicable Law referred to in clause 12.3.4, the Service Provider shall advise [COMPANY NAME] within a period of 1 (one) month from the date on which the event giving rise to the adverse change in the BEE Rating occurs, what steps have and/or shall be taken by the Service Provider to restore the original BEE Rating.
- 12.4. The Service Provider acknowledges and warrants that it has read and is fully conversant with, and shall strictly comply (where applicable to it) with, the BBBEE Legislation.
- 12.5. The Service Provider acknowledges and agrees that any act that constitutes a breach of its obligations in this clause 12 shall be deemed a material breach of this Agreement.

### 13. Breach and Termination

- 13.1. A Party ("**Defaulting Party**") shall be in default if one or more of the following events occur:
- 13.1.1. the Defaulting Party is in material breach of any of its obligations in terms of the Agreement which is not capable of remedy and cannot be adequately compensated by the payment of damages;
- 13.1.2. the Defaulting Party has persistently breached this Agreement such that, taken together, such repeated breaches amount to a material breach of this Agreement which is not capable of remedy and cannot be adequately compensated by the payment of damages;
- 13.1.3. the Defaulting Party is in material breach of any of its obligations in terms of the Agreement which is capable of remedy and fails to remedy the breach within 7 (seven) Business Days of receipt of written notice from the other Party ("**Innocent Party**") calling

upon the Defaulting Party to do so, provided that if the breach can reasonably be remedied within a shorter period, the Innocent Party may specify that shorter period in the notice and the Defaulting Party shall remedy the breach within that shorter period;

- 13.1.4. the Defaulting Party commits an act which is an act of insolvency; or
- 13.1.5. the Defaulting Party is provisionally or finally liquidated, placed under judicial management (whether provisionally or finally), or takes any steps for its voluntary winding up; or
- 13.1.6. the Defaulting Party suffers execution against any of its assets that has an adverse effect on its ability to perform its obligations under this Agreement; or
- 13.1.7. in the case of Service Provider, it transfers or assigns or attempts to transfer or assign any of its rights or obligations under this Agreement to a third party other than in accordance with the terms of this Agreement; or
- 13.1.8. the Defaulting Party disposes of all or a material portion of its assets or business that has an adverse effect on its ability to perform its obligations under this Agreement, or ceases to conduct its business except to the extent that such disposal or cessation relates to a solvent and genuine restructuring of it or any group of companies of which it is part.
- 13.2. Without limiting the situations where a Party may be considered or deemed to be in material breach of this Agreement, a Party shall be in material breach of this Agreement where it breaches any one or more of the following clauses 5, 10, 11, 14, 20, 21 and 24.6;
- 13.3. The rights granted to the Parties in terms of this clause 12 are granted without prejudice to the rights of the Aggrieved Party to hold the other Party liable for damages in the event that the other Party breaches an obligation owed to the Aggrieved Party in terms of this Agreement, notwithstanding the fact that the breach may not be regarded as a material breach.
- 13.4. Any termination of this Agreement shall be without prejudice to any other rights or remedies that the Parties may be entitled to under this Agreement or at law, and shall not affect any accrued rights or liabilities of the Parties nor the coming into or continuance in force of any provision of this Agreement which is expressly or by implication intended to come into or continue in force on or after such termination.



## 14. Termination

- 14.1. Without prejudice to any other rights of termination that [COMPANY NAME] may have in terms of this Agreement, [COMPANY NAME] shall be entitled to terminate this Agreement with immediate effect if the Service Provider:
- 14.1.1. becomes commercially insolvent or commits an act which would be an act of insolvency as defined by the Insolvency Act of 1936 as amended from time to time if committed by a natural person;
  - 14.1.2. is placed under curatorship, liquidation or under a winding-up order, whether provisionally or finally, voluntarily or compulsorily or business rescue proceedings are commenced in respect of the Service Provider;
  - 14.1.3. commits an act of which corruption or fraud is a material element, or any of its employees, directors, shareholders, trustees, and/or sub-contractors, and/or any person related to any of the aforementioned persons (as the case may be) commits such an act;
  - 14.1.4. commits or permits an action which brings [COMPANY NAME] into public disrepute;
  - 14.1.5. takes any steps to be wound-up or liquidated, as the case may be, whether provisionally or finally and whether compulsorily or voluntarily or takes steps to deregister itself or is deregistered;
  - 14.1.6. enters into any compromise with its creditors generally, or offers to do so;
  - 14.1.7. ceases or threatens to cease to carry on business or conducting business in the ordinary course thereof or takes steps to deregister itself or is deregistered;
  - 14.1.8. fails to meet any Service Levels (or any of them) as may be stated in the relevant Schedule;
  - 14.1.9. is found guilty of any offence contemplated in the B-BBEE Act.
- 14.2. Notwithstanding anything to the contrary contained in this Agreement, [COMPANY NAME] shall be entitled to terminate this Agreement for any reason upon 30 calendar days' written notice to the Service Provider.
- 14.3. In the event of termination of this Agreement for any reason whatsoever all Schedules shall automatically terminate.

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## 15. Confidential Information

- 15.1. Each Party acknowledges that during the course of the Agreement it will have access to certain Confidential Information of the other Party. Each Party has therefore agreed to accept the restrictions in this clause 15. The Confidential Information of the discloser may be used by the receiver only in connection with the Services.
- 15.2. Notwithstanding the cancellation or termination of this Agreement, each Party shall not directly or indirectly, either during the Agreement or at any time thereafter, use, in any manner whatsoever other than for the purpose of providing or accepting the Services in terms of this Agreement, or disclose to any Person, any Confidential Information. This restriction does not apply to information (including, but not limited to, ideas, concepts, know-how, techniques, and methodologies) –
- 15.2.1. previously known to it without obligation of confidence;
  - 15.2.2. independently developed by or for it;
  - 15.2.3. any use or disclosure authorised in writing by the discloser or required by law;
  - 15.2.4. acquired by it from a third party which is not, to its knowledge, under an obligation of confidence with respect to such information, save to exclude the [COMPANY NAME] agents from which data is collected, or
  - 15.2.5. any information which is already in, or comes into, the public domain otherwise than through such Party's unauthorised disclosure.
- 15.3. Each Party agrees to protect the confidentiality of the Confidential Information of the other in the same manner that it protects the confidentiality of its own proprietary and confidential information of like kind, but in no event shall either Party exercise less than reasonable care in protecting such Confidential Information. Access to the Confidential Information shall be restricted to: (i) Service Provider and [COMPANY NAME] personnel (including in the case of the Service Provider, personnel employed by its Affiliates) engaged in connection with this Agreement; and (ii) professional legal advisers of the Service Provider and [COMPANY NAME]. The Confidential Information may not be copied or reproduced without the discloser's prior written consent except for the purpose of provision of the Services.
- 15.4. Without prejudice to the other rights of the Party owning the Confidential Information ("**Owning Party**"), in the event of any actual or suspected unauthorised disclosure or use of the Confidential Information which is, or is reasonably likely to constitute, a breach of any provision of this Agreement, a Party shall:

- 15.4.1. immediately notify the Owning Party in writing and take such steps as the Owning Party may reasonably require and at the Owning Party's cost in order to remedy or mitigate the effects of such actual or threatened breach;
- 15.4.2. use all reasonable commercial endeavours and at the Owning Party's cost to assist the Owning Party in recovering and preventing the use, dissemination, sale or other disposal of such Confidential Information.
- 15.5. All Confidential Information made available hereunder, (including any copies) will at all times remain the property of the discloser and shall be returned to the discloser or irretrievably destroyed upon the first to occur of (i) completion of the Services or (ii) request by the discloser, unless the receiver is otherwise allowed to retain such Confidential Information. A Party may retain, subject to the terms of this clause 14, copies of the discloser's Confidential Information required for compliance with its record keeping or quality assurance requirements.
- 15.6. If either Party receives a subpoena or other validly issued administrative or judicial process or order demanding Confidential Information of the other Party or is required to disclose such Confidential Information to any stock exchange on which its shares are traded, it shall promptly notify the other of such receipt and tender to it the defence of such demand. The Party receiving the subpoena, demand or other process shall thereafter be entitled to comply with such subpoena, demand or other process to the extent required by law. Services provided hereunder in no event include the Service Provider acting as an expert witness or otherwise providing litigation support services.
- 15.7. The provisions of this clause 15 shall survive the termination or expiration of this Agreement for any reason.
- 15.8. The Parties agree that non-compliance by a Party hereto with this clause will constitute an action for breach of a duty of confidence owed to the other Party.

## **16. Dispute Resolution**

- 16.1. If a dispute of any nature arises between the Parties in connection with this Agreement, including any question regarding its existence, validity, implementation or termination, then, upon written request of any Party, each of the Parties shall appoint a senior representative whose task it shall be to meet for the purposes of resolving such dispute. Such representatives shall discuss the matter in dispute and negotiate in good faith in an effort to resolve the dispute on amicable terms within 14 (fourteen) days.

DG DS

- 16.2. Should the representatives of the Parties be unable to resolve a dispute in accordance with the foregoing, such dispute shall be submitted to and decided by arbitration in terms of this clause 16, or, by agreement between the Parties, by a court of competent jurisdiction.
- 16.3. The dispute shall be referred to and finally resolved by arbitration under the Rules of the Arbitration Foundation of Southern Africa (**AFSA**) for Commercial Arbitrations (**the Rules**), including the right to appeal, which Rules are deemed to be incorporated by reference into this clause 16.
- 16.4. There shall be 1 (one) arbitrator, whose identity shall be agreed in writing between the Parties within 5 (five) Business Days following the declaration of a dispute between the Parties, failing which the arbitrator shall be appointed by AFSA from the senior legal practitioners on its panel in terms of the Rules, taking into account the value and complexity of the dispute under referral.
- 16.5. The seat, or legal place, of the arbitration shall be South Africa and any hearing shall be held in Johannesburg. The language to be used in the arbitral proceedings shall be English. Unless the Parties agree otherwise, the arbitration shall be conducted on an urgent basis in terms of the Rules.
- 16.6. Nothing contained in this clause 16 shall preclude any Party from approaching a court of competent jurisdiction within the Republic of South Africa for interim relief on an urgent basis pending the final outcome of an arbitration referral under this clause 16.
- 16.7. The Parties agree and irrevocably undertake to keep the arbitration and all matters related thereto strictly confidential. Each Party (i) acknowledges and agrees that it shall not disclose any such information to any person other than its own employees, members, officers, professional advisors and/or other divisions who need to know such information for the purposes of this clause 16 (**Permitted Recipient**) or to third parties where it is required to do so under law or in terms of regulatory process; (ii) shall procure that each Permitted Recipient is made aware of and complies with its obligations of confidentiality in terms of this clause 16 and (iii) shall give reasonable notice to the other Party as and when any obligation for third party disclosure arises.

## 17. Exclusion and Limitation of Liability

- 17.1. Notwithstanding anything to the contrary stated herein, neither Party shall be liable to the other for any indirect, special or consequential damages and/or losses of whatsoever nature or howsoever arising (including but not limited to loss of revenue, loss of business opportunity).

DG 09

- 17.2. Except for third party infringement claims, each Party's liability for any event (or series of connected events) shall be limited to an aggregate value of the fees set out in the Services Schedule(s) / quotes or invoices submitted in terms of each Service Schedule in the past 12 month period in which the concerned liability arose.

## **18. Exit management**

- 18.1. Upon expiry or termination of this Agreement or any part of the Services, in order to facilitate the transfer of the Services, the Parties shall comply with the provisions of this clause 18.
- 18.2. The Service Provider shall, during the transfer period comply with the following obligations, if and to the extent requested by [COMPANY NAME] in writing –
- 18.2.1. establish a project team comprising of the Service Provider members involved in the provision of the Services on an ad hoc and as needed basis to assist [COMPANY NAME] to ensure an orderly transfer of the Services from Service Provider to [COMPANY NAME] or to a third party service provider, as the case may be;
- 18.2.2. provide [COMPANY NAME] or the third party service provider, as the case may be, with all the information and data of [COMPANY NAME] in its possession and the necessary co-operation to enable [COMPANY NAME] or such third party service provider, as the case may be, to take over the Services;
- 18.2.3. deliver all of [COMPANY NAME] Group's data which was used in the provision of the Services to [COMPANY NAME], its Affiliates or the third party service provider, as the case may be, and retain no copies of such data and information and furnish a declaration to the effect to [COMPANY NAME]; and
- 18.2.4. continue to perform the Services after the actual date of termination or cancellation, which Services shall be provided until expiry of the transfer period, or such earlier period as [COMPANY NAME] may advise the Service Provider in writing.
- 18.3. Each Party shall deliver to the other Party, within 10 (ten) Business Days of the actual date of termination of the Services, all Confidential Information and other proprietary material of the other Party which is the property of the other Party.
- 18.4. Service Provider shall within 30 (thirty) days of the actual date of termination of the Services deliver to [COMPANY NAME] (at such time, place and in such manner as [COMPANY NAME] may require) electronic records of all information and historical data of [COMPANY NAME] in its possession or under its control.

- 18.5. This clause 18 is severable from the rest of this Agreement and shall remain valid and binding on the Parties notwithstanding any termination of this Agreement.

## **19. Inspection and audit**

- 19.1. During the term of this Agreement and for a period of 1 (one) year thereafter, Service Provider shall keep and maintain all relevant records related to this Agreement, the Services and the performance of its obligations in this Agreement.
- 19.2. The Service Provider shall provide [COMPANY NAME], upon prior written request, with monthly reports detailing the status of the Services as set out in the Schedule.
- 19.3. Upon a prior written request made by [COMPANY NAME] from time to time, the Service Provider shall provide [COMPANY NAME] with access to all information, documentation and records, as may reasonably be required by [COMPANY NAME] in order to use the Services in the manner envisaged by this Agreement.

## **20. Anti Corruption**

- 20.1. Each Party hereby –
- 20.1.1. represents and warrants that it and its Personnel, have not, at any time, directly or indirectly, promised or offered; and
- 20.1.2. undertakes not to, directly or indirectly, promise or offer, and to procure that its Personnel, do not, directly or indirectly, promise or offer,
- donations, gifts or other benefits whatsoever in order to influence any Personnel of the other Party in the exercise of discretionary authority, in connection with the Services or any matter covered by this Agreement.
- 20.2. Each Party shall not do, or omit to do, any act that will cause such Party to be in breach of applicable laws in the Territory, and in doing so shall not give or receive any bribes and shall procure that its Personnel, do not give or receive any bribes.
- 20.3. If at any time after the Signature Date –
- 20.3.1. [COMPANY NAME] has a reasonable suspicion that the Service Provider has, in respect of the Services or any matter covered by this Agreement, directly or indirectly, promised or offered donations, gifts or other benefits whatsoever to the persons and for the purposes contemplated in clause 20.1 above, the Service Provider shall be in breach of this Agreement and [COMPANY NAME] shall be entitled, by written notice to the

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Service Provider, to forthwith terminate this Agreement without any further liability to the Service Provider, and the Service Provider shall indemnify [COMPANY NAME] against any costs, claims and liabilities arising as a result of such breach; and

- 20.3.2. if a Party breaches its obligations under cause 20.2, the other Party shall be entitled, by written notice to the Party in breach, to forthwith terminate this Agreement without any further liability to the other Party, and the Party in breach shall indemnify the other Party against costs, claims and liabilities arising as a result of the breach.

## **21. Warranties**

- 21.1. The Parties give to each other the warranties in 21.2 on the basis that:

- 21.1.1. this Agreement is entered into by each Party relying on the warranties, each of which is deemed conclusively to be both a material representation inducing each party to enter into this Agreement;
- 21.1.2. each such warranty shall be conclusively deemed to be material inducing each party to enter into this Agreement;
- 21.1.3. insofar as any warranty is promissory or relates to a future event, such warranty shall be deemed conclusively to have been given as at the due date for fulfilment of the promise or the happening of the event, as the case may be; and
- 21.1.4. each such warranty shall be a separate and independent warranty and shall not be limited by any reference to, or inference from, the terms of any other warranty or by any other provisions in this Agreement.

- 21.2. Each Party warrants, represents and undertakes in favour of the other that:

- 21.2.1. it is a company duly incorporated and validly existing under and in accordance with the Applicable Laws;
- 21.2.2. it has the legal capacity and the power to own its assets and to carry on its business as it is presently being conducted;
- 21.2.3. it has:
- 21.2.3.1. the legal capacity and the power to enter into and perform; and
- 21.2.3.2. taken all necessary actions (whether corporate, internal or otherwise) to authorise its entry into and performance of, this Agreement;

DG DS

- 21.2.4. the obligations expressed to be assumed by it under this Agreement are legal and valid and are binding on, and enforceable against, it;
- 21.2.5. the entry into this Agreement and/or the performance of its obligations under this Agreement does not, and will not,
  - 21.2.5.1. contravene any Applicable Laws; and/or
  - 21.2.5.2. contravene, violate, cause a default and/or breach of the terms of, and/or otherwise conflict with any contract, Agreement, indenture, mortgage or other instrument of any kind to which it is a party or by which it may be bound or which is binding upon its assets;
- 21.2.6. all authorisations, consents approvals, resolutions, licenses, exemptions, filings and registrations which are required or necessary under all Applicable Laws:
  - 21.2.6.1. to enable it to lawfully enter into and comply with its obligations under this Agreement; and
  - 21.2.6.2. to make this Agreement admissible in evidence in the Republic of South Africa,
    - have been obtained or effected and are, and will for the duration of this Agreement remain, in full force and effect;
- 21.2.7. it has disclosed to the other, in writing, all facts and circumstances which are, or which may reasonably be regarded to be, material to entering into this Agreement.

## **22. Specific Service Provider warranties**

- 22.1. The Service Provider warrants and undertakes that the Services (including any product of the Services), use of the Services (including the products of the Services) by the [COMPANY NAME] Group and the performance by the Service Provider of its obligations in terms of this Agreement, will not infringe the rights, including without limitation the Intellectual Property Rights of any third party or cause any third party to suffer damages.
- 22.2. The Service Provider indemnifies [COMPANY NAME] and agrees to keep [COMPANY NAME] fully and effectively indemnified on demand against any losses, claims, costs or liability (including, without limitation, legal/attorney fees on an attorney and client scale) incurred by [COMPANY NAME] arising out of a breach by Service Provider of its warranty and undertaking in clause 22.1.

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### 23. Force Majeure

- 23.1. Neither Party will be liable to the other for any delay or non-performance of its obligations under this Agreement to the extent to which such delay or non-performance arises from any:
- 23.1.1. act of God, governmental intervention (whether declared or not), pandemics or epidemics (whether declared or not), war, fire, flood, explosion, civil commotion, armed hostilities, act of terrorism, revolution; or
  - 23.1.2. blockade, embargo, strike, lock-out, sit-in or industrial or trade dispute; or
  - 23.1.3. adverse weather or disease; or
  - 23.1.4. act or intervention of a competent Authority, including a change to any Applicable Laws; or
  - 23.1.5. failure in public supply of electrical power or public telecommunications equipment; or
  - 23.1.6. any event beyond its (or its employees) reasonable control which could not reasonably be planned for or avoided,
- provided that the event, act or intervention does not result from any act or omission of the party concerned, (each of these events, acts or interventions shall constitute a **"Force Majeure Event"**).
- 23.2. A Party whose performance is affected by a Force Majeure Event (the **"Affected Party"**) will:
- 23.2.1. promptly notify the other Party in writing of the Force Majeure Event and the cause and the likely duration of any consequential delay or non-performance of the Affected Party's obligations; and
  - 23.2.2. promptly use reasonable endeavours to avoid or mitigate the effect of such event on the other Party and the performance of the Affected Party's obligations and resume full performance of the Affected Party's obligations as soon as reasonably possible.
- 23.3. If the Affected Party has complied with clause 23.2, its performance of any affected obligation under this Agreement will be suspended for the period that the Force Majeure Event continues and the Affected Party will have an extension of time for performance equal to the period of delay or failure, but the Affected Party will continue to perform all other obligations that are not prevented by the Force Majeure Event. If performance of any material part of the Services is not resumed within 30 (thirty) calendar days after the notice from the Affected

Party to the other Party, the other Party may terminate this Agreement or the affected Service immediately by giving written notice to the Affected Party without incurring any liability.

## 24. Miscellaneous

### 24.1. Notices and *domicilium*

24.1.1. The Parties choose as their *domicilium citandi et executandi* (address for purpose of legal proceedings), their respective addresses set out in clause 24.1.2, at which addresses all processes and notices arising out of or in connection with this Agreement, its breach or termination may validly be served upon or delivered to the Parties.

24.1.2. For the purposes of this Agreement the Parties' *domicilia citandi et executandi* are as follows:

24.1.2.1. as regards [COMPANY NAME] at:

[COMPANY ADDRESS]

Attention: [Insert Name of the Business Contact Person]

Email: [Insert email address of the Business Contact Person]

With a copy sent to: legal@[COMPANY NAME].co.za

24.1.2.2. as regards the Service Provider:

[Insert physical address]

Email: [Insert email address of the relevant Contact Person]

and shall be marked for the attention of [insert relevant Contact Person's name];

24.1.3. The notice shall be deemed to have been duly given:

24.1.3.1. 7 (seven) days after posting, if posted by registered post to the Party's postal address in terms of this sub-clause;

24.1.3.2. on delivery, if delivered to the Party's physical address in terms of the next sub-clause dealing with service of legal documents,

unless the addressor is aware, at the time the notice would otherwise be deemed to have been given, that the notice is unlikely to have been received by the addressee through no act or omission of the addressee.

- 24.1.4. A Party may change that party's address for this purpose, by notice in writing to the other Party. No notice shall be necessary in respect of a new or changed fax number.
- 24.1.5. A Party may change that Party's address for this purpose to another physical address in South Africa, by notice in writing to the other Party.
- 24.1.6. The Parties agree that operational notices and communications may be sent and received via email. In this regards the provisions of the Electronic Communications and Transactions Act, No. 25 of 2002 ("**Act**"), shall apply. For the purposes of clarity, the provisions of the aforementioned Act shall not apply in respect of service of legal notices, legal processes and amendments to the Agreement.

#### **24.2. Validity**

If any provision of this Agreement is found or held to be invalid or unenforceable, the validity of all the other provisions hereof will not be affected thereby and the Parties agree to meet and review the matter and if any valid and enforceable means are reasonably available to achieve the same object as the invalid or unenforceable provision, to adopt such means by way of variation or this Agreement.

#### **24.3. Severability**

In the event that any of the terms of this Agreement are found to be invalid, unlawful or unenforceable, such terms will be severable from the remaining terms, which will continue to be valid and enforceable. If any invalid, unlawful or unenforceable term is capable of amendment to render it valid, lawful or enforceable, the Parties agree to negotiate and agree such an amendment in good faith.

#### **24.4. Variation**

No variation of or addition to or consensual cancellation of this Agreement will be of any force or effect unless reduced to writing and signed by or on behalf of the Parties. This requirement shall only be satisfied if such variation is made in a written, paper-based form. Any communication by the Parties via email, short message service, WhatsApp, or any written communication on any social media platform shall not be construed as an amendment and/or addition to this Agreement unless the Parties specifically agree that such communication shall be incorporated into this Agreement and signed by both Parties.

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**24.5. Waiver**

No waiver on the part of either Party of any rights arising from a breach of any provision of this Agreement will constitute a waiver of rights in respect of any subsequent breach of the same or any other provision. A Party shall not be deemed to have waived any of its rights which may exist or which may have arisen prior to signature of this Agreement as a result of any other agreements or arrangements entered into with the other Party as a result of the actions of the other Party. Any failure or delay by a Party to enforce any of its rights under this Agreement shall not be deemed to be a waiver of such rights and such rights shall remain in existence and enforceable unless a Party expressly records such waiver in writing.

**24.6. Assignment**

- 24.6.1. The Service Provider may not cede, assign, delegate, transfer or in any manner whatsoever deal with its rights or obligations in terms of this Agreement without [COMPANY NAME]'s prior written consent.
- 24.6.2. [COMPANY NAME] may cede, assign, delegate, transfer or in any other manner, deal with its rights or obligations under this Agreement to any of its Affiliates without the Service Provider's consent.

**24.7. Warranties**

Neither of the Parties has given any warranty or made any representation to the other Party, other than any warranty or representation which may be expressly set out in this Agreement.

**24.8. Costs**

Each Party hereto shall pay their own costs in respect of the drafting of this Agreement and all negotiations relating to the same.

**24.9. Jurisdiction**

This Agreement shall in all respects (including its existence, validity, interpretation, implementation, termination and enforcement) be governed by the laws of the Republic of South Africa.

**24.10. Survival**

The provisions of this clause 24.10 and the provisions of clauses 1, 10, 11, 15, 16, 20, 22 and 24 shall survive the termination of this Agreement for any reason.

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|                                                                   |            |
|-------------------------------------------------------------------|------------|
| <b>Signed at:-</b>                                                | ttyy       |
| <b>Date:-</b>                                                     | 2026-05-08 |
|                                                                   |            |
| For and on behalf of:                                             |            |
| <b>[COMPANY NAME]</b>                                             |            |
| <b>Name</b>                                                       | tty        |
| <b>Designation</b>                                                | tytyty     |
| I warrant that I have been duly authorised to sign this Agreement |            |

|                                                                   |            |
|-------------------------------------------------------------------|------------|
| <b>Signed at:-</b>                                                | tgtgtg     |
| <b>Date:-</b>                                                     | 2026-05-08 |
|                                                                   |            |
| For and on behalf of:                                             |            |
| <b>[INSERT NAME OF SERVICE PROVIDER/SUPPLIER]</b>                 |            |
| <b>PROPRIETARY LIMITED</b>                                        |            |
| <b>Name</b>                                                       | gttgt      |
| <b>Designation</b>                                                | tgtg       |
| I warrant that I have been duly authorised to sign this Agreement |            |

## Schedule 1

## 1. SCHEDULE DETAILS

|                   |          |
|-------------------|----------|
| Commencement Date | [insert] |
| End Date          | [insert] |
| Title of Schedule | [insert] |

***[Drafting Note: Please ensure that the "Commencement Date" and "Schedule's Initial Term must always be within the applicable duration of the Master Agreement.]***

## 2. INTRODUCTION

- 2.1. [COMPANY NAME] and the Service Provider entered into a Services Agreement ("the Agreement") dated [insert date]. The Parties enter into this Schedule pursuant to the Agreement.
- 2.2. Save as expressly set out in this Schedule, words and expressions defined in the Agreement will have the same meanings when used in this Schedule.
- 2.3. This Schedule incorporates the terms and conditions of the Agreement and forms a separate and independent contract between the Parties in relation to the provision of the Services described herein.
- 2.4. Either Party shall have the right to terminate this Schedule prior to the expiry of the duration thereof by giving the other Party 30 (thirty) days' prior written notice or such other period as agreed upon by the Parties depending on the nature of the Services to be rendered. On receipt of the notice referred to in this clause 2.4, the Parties shall ensure compliance with clause 18 of the Agreement regarding exit management.

## 3. SERVICES DESCRIPTION

- 3.1. [INSERT COMPREHENSIVE DETAILS OF WHAT SERVICES [COMPANY NAME] IS EXPECTING TO RECEIVE FROM THE SERVICER PROVIDER]

## 4. SERVICE LEVELS [IF ANY]

- 4.1. [INSERT SERVICE LEVELS, IF ANY, WHICH ARE THE TIME PARAMETERS AS WELL AS THE QUALITATIVE AND QUANTITATIVE STANDARDS, ACCORDING TO WHICH THE SERVICES ARE TO BE PROVIDED AND THE PERFORMANCE THEREOF MEASURED]

DG 09

## 5. FEES

5.1. [COMPANY NAME] shall pay the Service Provider **[insert]** for the Services set out in clause 3 above, in accordance with the following breakdown.

5.1.1. **[Insert breakdown, if applicable]**

Dated at gtgt on this 1 day of g 201

For: **[COMPANY NAME]**

Sign:   
 Full Name: gtg  
 Title: tgtg

Dated at gtgt on this 1 day of tgt 201

For: **[Insert SP Name] Proprietary Limited**

Sign:   
 Full Name: tgtg  
 Title: tgtg